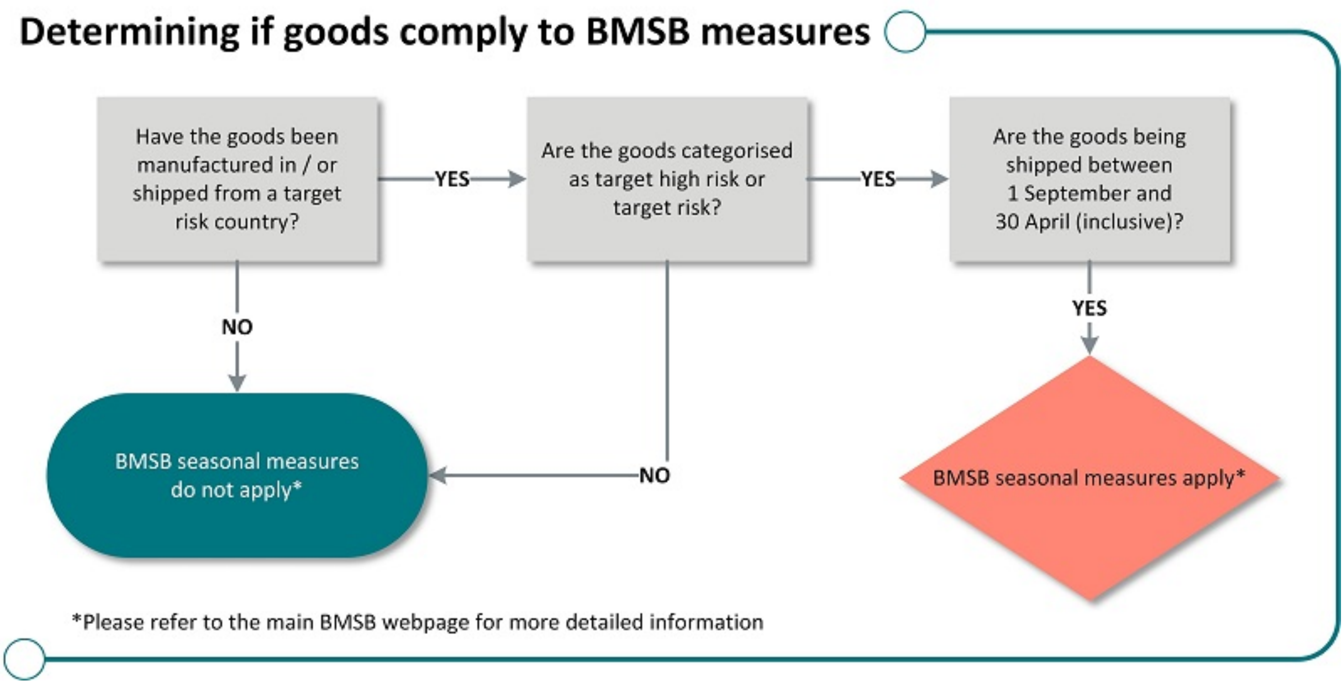
The information provided on this page is to assist industry stakeholders prior to the importation of goods during the BMSB risk season.

Check if your goods need to comply with the seasonal measures

- Will the goods be shipped between 1 September and 30 April (inclusive)?
- Will the goods be shipped as sea cargo?
- Have the goods been manufactured in, or shipped from, a target risk country?
- Are the goods categorised as target high risk or target risk goods?

If you have answered yes to all the above questions, then BMSB measures will apply to your goods. The same conditions will apply for both new and used goods.

Note: The seasonal measures only apply to the goods being imported, not to the packaging material / non-commodity.



All target high risk goods manufactured in, or shipped from, target risk countries as sea cargo must comply with mandatory treatment unless certain conditions deem mandatory treatment is not required.

Containers packed and sealed prior to 1 September

Where target high risk goods are packed and sealed in a six hard sided container in a target risk country prior to 1 September, a sealing declaration will be accepted by the department.

Note: Sealing declarations cannot be used for open top, flat rack or modified containers.

Goods stored or transported to non-target risk countries prior to 1 September

Goods will be deemed out of scope for mandatory BMSB measures if evidence can be provided that the goods have been transported to and stored in a non-target risk country prior to 1 September.

Evidence can be in the form of international trade documentation (as defined in Minimum documentary and import declaration requirements policy). Any documents submitted to support the goods being in a non-target risk country prior to 1 September must be able to be linked to the current consignment via an acceptable consignment-specific link. Supplier/importer declarations are not acceptable forms of evidence.

Where enough evidence cannot be provided, the goods may be directed for export or onshore treatment (if permitted).

New, Unused and not Field Tested (NUFT) goods

Goods that can meet all the following criteria will not be subject to mandatory BMSB treatment:

- The goods were manufactured on or after 1 December? (manufacture must start from 1 December of the current BMSB risk season).
- The goods are classified under the following tariff chapters only: 82, 84, 85, 86, 87, 88 and 89.
- Evidence can be provided in the form of a BMSB NUFT (new, unused and not field tested) manufacturers declaration that the goods were manufactured on or after 1 December.

Goods that have been refurbished do not meet this criterion.

Note: The start date of manufacture is determined by the date the goods (as a whole) was started and does not include the requirement to verify any or all complex components within the manufactured unit unless they are required to be reported as separate components by Australian Border Force (ABF).

BMSB NUFT Declarations

In addition to Minimum Documentary and import declarations policy requirements for manufacturers declarations (section 4.6.1), your BMSB NUFT manufacturers declaration must also meet the following requirements:

- Must contain the statement “the product is new, unused and not field tested”.
- Must have a manufacture start date.

Note: As per minimum documentary and import declaration requirements, manufacturers declarations will only be accepted from the company that manufactured/produced the goods and must be issued by either the individual manufacturing site or head office within the country of manufacture unless a valid import permit or BICON case states otherwise.

Note: The department considers goods field tested, if, during manufacture, animal or plant material or soil has been introduced to or has come into contact with the machine or equipment.

If evidence is not provided, the goods may be directed for export or onshore treatment (if permitted).

A BMSB NUFT declaration may be used for eligible goods shipped in sealed six hard sided containers, goods shipped as break bulk (including flat rack and open top containers) and consignments in Less than a Container Load (LCL) / Freight All Kinds (FAK) containers.

Note: If other untreated high risk non-eligible tariffs / goods are packed with NUFT goods, the whole consignment will be subject to BMSB seasonal measures and require treatment either offshore, or onshore at the container level (where permitted).

A NUFT template has been added to the Templates for documentary evidence section of this page to use as a guide.

Household goods and personal effects imported as unaccompanied personal effects

Household goods and personal effects imported as Unaccompanied Personal Effects (UPEs), that are categorised as target high risk goods, will not be subject to mandatory treatment requirements if they are imported under the B534 form (located via the Australian Border Force (ABF) web page). However, goods required to be reported under a Full Import Declaration (FID), for example, motor vehicles and motorbikes, or any good that doesn’t meet the requirements for concessional tariff 99, will require mandatory BMSB treatment either offshore or onshore (if permitted).

All UPEs will be subject to increased onshore inspection. If the goods are imported as Less than Container Load (LCL) in a Freight of All Kinds (FAK) container, a Master Consolidators declaration will be required to be submitted and they will be subject to assessment and inspection at the container level prior to deconsolidation.

Important: To be exempt from the measures, all goods within the consignment must be approved by ABF to be reported under concessional tariff 99.

If BMSB are detected during the unpack of UPEs please report it to See. Secure. Report. on 1800 798 636 or complete the online form.

Check if your goods require mandatory treatment

- Will the goods be shipped between 1 September and 30 April (inclusive)?
- Will the goods be shipped as sea cargo?
- Have the goods been manufactured in, or shipped from, a target risk country?
- Are the goods categorised as target high risk?

If you have answered yes to all the above questions, then BMSB treatment will apply to your goods.

Goods shipped as a mixture of air cargo and sea cargo

The BMSB measures apply to goods that arrive in Australia as sea cargo, regardless of if they were shipped via a different pathway for the first half of the journey.

Example: Target high risk goods from a target risk country sent as air cargo to a non-target risk country, and then shipped as sea cargo to Australia are subject to BMSB measures.

Goods arriving into Australian territory via other pathways will be monitored for BMSB risk.

Goods shipped in refrigerated containers

A refrigerated container (reefer) is categorised as a six hard sided container. If the target high risk goods were not treated offshore the container will require mandatory onshore treatment. Deconsolidation or removal of goods from the container will not be permitted prior to treatment.

Treating goods to address both the commodity and BMSB requirements

Where one treatment is being conducted to meet two separate requirements (BMSB and commodity treatment) the highest of each treatment parameter (e.g., dose rate, minimum temperature, duration and retention) for each prescribed treatment rate must be met.

If treating offshore, treatment providers must be registered under AusTreat (if treating in target risk countries) and must still provide BMSB treatment certificates (and phytosanitary certificates if required) as evidence the treatment has been completed. The documents must include all the required details to show that the treatment requirements for both commodity and minimum BMSB standards have been met or exceeded.

Packing of containers and plastic wrap

Containers should be packed in a manner that will enable effective onshore treatment, where required, to avoid possible export of goods. This includes the use of plastic wrapping and packaging that provides adequate access to the goods for the treatment to be effective.

- Commercial packaging applied as part of the manufacturing process does not need to be opened, removed, or slashed.
- Shipping packaging applied for the purposes of providing protection and stability during shipping must be opened, removed, or slashed if it prevents distribution of heat or fumigant into areas within the enclosure.

For further guidance on packaging suitability, including the differences between commercial packaging and shipping packaging, and treatment methodologies visit the Methodologies and documents for biosecurity treatments webpage.

Treating target high risk containerised goods offshore

When treating goods offshore, only the target high risk goods require treatment. They may then be packed with all other non-target risk goods into a container for export. All goods subject to the seasonal measures will be managed at the container level (where approved), if they arrive in Australia untreated.

If your container has mixed goods, such as target high risk, target risk and other goods, the container will be assessed onshore as target high risk and treatment at the container level will be required.

Note:

- To expedite onshore clearances of LCL and FAK containerised cargo, importers are encouraged to treat these goods offshore and at the container level.
- If BMSB is detected during inspection in Australia, all goods will require onshore treatment at the container level. Where non-compliance issues are identified, the goods may be directed for export or destruction.
- BMSB detections may result in additional intervention being applied to the offshore treatment provider, supplier or importer to manage the risk of BMSB for future imports.

Carnets, military and diplomatic goods

If a carnet or a consignment of military or diplomatic goods (including all goods imported under concessional tariff 99 (other than UPEs as defined above)), contains BMSB target high risk goods from a target risk country, they will be subject to mandatory BMSB treatment either offshore or onshore at the container level (where permitted). These goods are not exempt from BMSB seasonal measures.

If your target high risk goods are:

- manufactured in or shipped from a target risk country between 1 September and 30 April; and
- shipped as break bulk cargo (including flat rack and open top containers), or in modified containers

offshore treatment is MANDATORY.

Goods that arrive untreated will be denied discharge from the vessel and/or directed for export on arrival.

Note: If you are importing target high risk goods as break bulk (including flat rack, open top and modified containers) and it has not been treated offshore prior to arrival, you must answer 'YES' to community protection question 642 (BIOSECURITY: ARE THE GOODS ARRIVING IN AN OPEN TOP/FLAT RACK CONTAINER OR AS BREAK BULK, AND DO NOT MEET OFFSHORE BMSB TREATMENT REQUIREMENTS?). This includes Automated Entry Processing for Commodity (AEPCOMM) lodgements.

If you have determined your goods require mandatory offshore treatment, you need to check if an approved provider under AusTreat must be used.

Treatment in a target risk country

Goods treated in a target risk country, must be treated by a treatment provider registered and approved under AusTreat.

Where goods are not treated by an approved offshore treatment provider or the treatment does not meet import requirements, the treatment certificate will be deemed to be invalid and the goods will be denied discharge and/or directed for export on arrival.

Treatment in a non-target risk country

Goods treated in a non-target risk country do not have to use a treatment provider that is registered and approved under AusTreat. However, these goods may be subject to increased onshore intervention on arrival. This may include inspection to verify that the treatment has been carried out effectively.

We recommend you check and use an approved treatment provider under the AusTreat for the country of export where possible.

For goods treated prior to 1 December, a 120 hour post treatment window applies after they have been treated.

The 120 hour timeframe commences after treatment has been completed or when ventilation commences. For example, for:

- Fumigation treatment, goods may be treated and treatment seals left intact. The post treatment window will commence when ventilation commences.
- Heat treatment, the post treatment window commences immediately after treatment has been completed.

Containerised goods – Goods must be loaded into a six hard sided container and sealed within 120 hours. A sealing declaration can be provided if required.

Break bulk (including flat racks and open top containers) and modified containers– must be loaded onto a vessel for export from the target risk country within 120 hours. The shipped on board date, as indicated on the Ocean Bill of Lading, is the date used to determine whether break bulk is loaded within the 120 hour post treatment window.
Note: The 'place and date of issue' is insufficient to confirm the goods were loaded on the vessel.

Note: The post treatment window does NOT apply to goods treated in a non-target risk country, or to goods treated from 1 December (inclusive) of the current BMSB season.

What happens to goods that arrive in Australia that have not met post treatment window requirements?

Onshore treatment is permitted for target high risk goods shipped in sealed six hard sided containers. For goods in sealed six hard sided containers, if the goods cannot be treated at the container level, or if the importer does not wish to have treatment performed on the goods, the cargo will be directed for export.

Break bulk cargo, including open top and flat rack containers and modified containers, that have not met post treatment window requirements will be denied discharge and / or immediately directed for export.

What happens when break bulk (including flat rack, open top and modified containers) is unavoidably rolled / rescheduled and loaded onto another vessel?

There are no provisions in the measures that enable goods shipped as break bulk that has missed the 120 hour post treatment window to be retreated onshore this season.

These goods must be retreated offshore prior to arrival or they will be denied discharge and/or directed for export to be treated offshore prior to return.

Transhipped goods are goods that are destined for a place outside of the target risk country but are discharged in a target risk country for loading onto another conveyance for export.

Check if your transhipped goods need to comply with the seasonal measures

- Are the goods transhipped between 1 September and 1 December inclusive?
- Are the goods being transhipped via a target risk country?
- Are the goods categorised as target high risk goods?
- Are the goods being shipped as break bulk/flat rack/open top or in a modified container?

If you have answered yes to all the above questions, mandatory treatment will apply if the goods spend more than 120 hours in the target risk country.

Note: If your goods are loaded in a target risk country and are also transhipped in a target risk country, both the 120 hour post treatment window and 120 hour transhipping window will apply.

Note: The department will accept commercial documents in the form of trucking advice, bills of lading or transhipment declarations for goods that have been transported from a non-target risk country to a target risk port on/or after 1 December for export. All documents must be able to be linked to the current consignment and must meet Minimum documentary and import declaration requirements policy.

Containerised goods

If the goods are sealed in a six hard sided container in a non-target risk country, that will not be opened during transhipment in the target risk country, BMSB measures do not apply to your goods and a sealing declaration will be accepted by the department.

Note: Sealing declarations cannot be used for open top, flat rack or modified containers.

Target high risk goods shipped from target risk countries during the BMSB risk season that tranship via Australia, en-route to another country, may be subject to mandatory offshore treatment. This includes ship stores being imported / transhipped under a permit.

Check if your goods will require mandatory offshore treatment

- Are the goods categorised as target high risk goods?
- Are the goods shipped from a target risk county?
- Are the goods shipped as break bulk, in an open top or on a flat rack container or in a modified container?
- Are the goods being discharged from the vessel and landing on the wharf before transhipping to another country?

If you have answered yes to all of the questions above, the goods must be treated offshore using an approved treatment provider under AusTreat.

Containerised goods

If the goods are sealed in a six hard sided container that will not be opened during transit or discharge in an Australian port, BMSB measures will not apply to the goods.

Note: If the container will be opened onshore (for any length of time), it will be subject to BMSB seasonal measures including mandatory treatment at the container level if it contains untreated target high risk goods manufactured in or shipped from a target risk country.

Where detections of BMSB are found, and/or where the department considers the treatment provider has failed to comply with our import conditions, scheme requirements, or the relevant treatment methodology, the treatment provider may be placed under review or suspended and subject to further assessment/audit.

The department will enact the ‘in transit policy’ for consignments where the treatment provider status has changed.

Changes to treatment provider status will be notified to industry via Import Industry Advice Notices and the date of the status change will be published on the List of Treatment Providers in the summary of recent changes.

In-transit policy

Consignments or goods are classified as ‘in-transit’ when they have left the country of origin but have not yet been cleared through the border in Australia. When an offshore BMSB treatment provider is listed as under review or suspended, the department enacts its ‘in-transit’ policy.

Under this policy, all BMSB treatment certification issued by a treatment provider classified as under review or suspended will be considered unacceptable from the date the change is published on the department’s website, regardless of the date of treatment or date of issue on the certificate. This includes certification issued both before and after the change in their status.

Industry will be notified that a treatment provider has been classified as under review or suspended through an Import Industry Advice Notice (IIAN) and the treatment providers status will be updated in the List of Treatment Providers and in the summary of recent changes on this list.

Goods shipped as break bulk, including open top or flat rack containers, prior to the change in treatment provider status

Break bulk goods that were shipped on board on or prior to the relevant treatment provider being placed under review or suspended or shipped on board a vessel within 120 hours after the suspension (goods in-transit to Australia at the time of status change), will be permitted to discharge/unload on arrival only if there is an approved risk management plan in place. This will be in the form of an approved In-Transit Application.

A completed In-transit Application Form (including all required attachments) must be submitted to the department via email to Hitchhiker Pests Policy, prior to the goods arriving in Australia. Failure to do so will result in the goods being denied discharge and/or being directed for export.

The In-transit Application is intended to demonstrate to the department that the risk is being sufficiently managed in order to allow the transport of the affected cargo from the vessel to a department approved onshore treatment provider for treatment in accordance with the BMSB seasonal measures.

As part of the application requirements, the completed form must include:

- A copy of the original treatment certificate.
- A copy of the Bill of Lading that includes a shipped on board date.
- Written evidence from the entity engaged to perform the tarping, confirming the tarping will be performed within 24 hours of discharge. Written evidence from the Wharf, confirming access will be provided to the 3rd party to allow tarping to be performed within 24 hours of discharge.
- Written evidence from the engaged AA to perform the treatment, confirming the treatment will be performed within 24 hours of the tarping being verified by a DAFF officer prior to movement to the nominated AA.

Note: Treatment must occur on wharf or at an approved AA facility located within the discharge port precinct.

Upon approval of an in-transit application, an alternative clearance letter may be provided to submit to Cargo Online Lodgement System (COLS) permitting the retreatment of the goods onshore on arrival.

Goods shipped as break bulk, including open top or flat rack containers, after the change in treatment provider status

Break bulk goods that were shipped after the relevant treatment provider was placed under review or suspended will not be permitted to discharge/unload within Australian territory, or if they have been unloaded from the vessel, will be directed for immediate containment and export. These goods will be assessed as non-compliant break bulk goods.

Goods shipped as break bulk, including open top or flat rack containers, and arrived or discharged prior to the suspension

Break bulk goods that have been discharged prior to, or on the date, the relevant treatment provider was suspended will be permitted for onshore treatment only with the approval of a risk management plan. These goods will be directed for appropriate containment of potential BMSB risk and treatment within 48 hours of arrival. If the goods cannot be treated within 48 hours, they may be directed for export, based on timeliness of treatment or export options. Break bulk goods treated onshore may be subject to further inspection.

Goods shipped as containerised cargo in sealed six hard sided containers

Goods that have been shipped in sealed six hard sided containers and treated by an under review or suspended offshore treatment provider will continue to be permitted to discharge/unload on arrival as per the current processes. These goods will be directed for onshore treatment by a department approved treatment provider. Deconsolidation or segregation of goods will not be permitted prior to treatment and goods may also be subject to further inspection.

Sealing and transhipment declarations must be completed by the exporter/freight forwarder/shipping company at the port of origin. Australian based importers/brokers cannot sign off on these declarations, and they will not be accepted by the department.

BMSB NUFT manufacturers declarations will only be accepted from the company that manufactured/ produced the goods and must be issued by either the individual manufacturing site or head office within the country of manufacture unless a valid import permit or BICON case states otherwise.

BMSB Sealing declaration (PDF 45 KB)BMSB Sealing declaration (DOCX 39 KB)

BMSB 120 hour Tranship declaration by Road (PDF 70 KB)BMSB 120 hour Tranship declaration by Road (DOCX 36 KB)

BMSB 120 hour Tranship declaration by Sea (PDF 73 KB)BMSB 120 hour Tranship declaration by Sea (DOCX 36 KB)

BMSB NUFT manufacturers declaration template (PDF 124 KB)BMSB NUFT manufacturers declaration template (DOCX 39 KB)

In-Transit Application Form (PDF 283 KB)In-Transit Application Form (DOCX 350 KB)

If you have difficulty accessing these files, visit web accessibility for assistance.